

Durgvijay Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 March 2021 · Writ-C No. 9594 of 2021 · **Writ disposed; relegated to appeal against final assessment**

HEADNOTE

A recovery citation issued after determination of civil liability for unauthorised use or theft of electricity is governed by Clause 8.1 of the Electricity Supply Code, 2005. The High Court will not inquire into the factum of theft. The consumer's remedy is an appeal against the final assessment, in which the appellate authority must ascertain whether the assessing authority complied with Clause 8.1. Lodging of an FIR does not bar the civil recovery.

FACTUAL SUMMARY

Durgvijay Yadav challenged a recovery citation issued after an assessment alleging theft of electricity. He had not challenged any earlier stage of the assessment. He asserted that the connection stood in his name, that the theft allegation was false, and that a first information report had already been lodged, after which the department could not issue the citation. Department counsel appeared. Permission was granted to implead the concerned Executive Engineer as respondent no. 4.

HOLDING-UNITS

INTERPLAY · UP-2005::8.1

theft assessment; recovery citation; writ versus appeal

HOLDING

On a challenge to a recovery citation issued after assessment on allegations of theft, the High Court will not inquire into the factum of theft. Civil recovery after determination of liability for unauthorised use or theft follows Clause 8.1 of the Electricity Supply Code, 2005. The consumer may appeal the final assessment; if an appeal is filed, the appellate authority is obliged to ascertain whether the assessing authority complied with Clause 8.1. An FIR does not preclude issuance of the recovery citation. ¶ 1-2

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1 The Court refused a writ inquiry into the factum of theft and disposed of the petition by relegating the petitioner to appeal against the final assessment, with a direction that the appellate authority must check Clause 8.1 compliance in the civil-liability assessment. The recovery citation, issued after that determination, was treated as following Clause 8.1 and not barred by the FIR. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT COMMITTED THEFT OF ELECTRICITY

No factual inquiry on the theft allegation; left to appeal against the final assessment. ¶ 1

NOT DECIDED — WHETHER THE ASSESSING AUTHORITY COMPLIED WITH CLAUSE 8.1

Left to the appellate authority if an appeal is filed. ¶ 2